

		Lastly, Plaintiff brings a claim for unfair competition, pursuant to Business & Professions Code section 17200, which prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....” (Bus. & Prof. Code, § 17200.) “Where a UCL Claim is derivative of another claim that fails as a matter of law, the UCL claim must similarly fail.” (Nein v. HostPro, Inc. (2009) 174 Cal.App.4th 833, 841.) Defendants demur to the Third Cause of Action, on the basis it is derivative of all remaining claims. (Demurrer: 7:2-4.) In response, Plaintiff concedes the derivative nature of this claim, but nonetheless asserts that “the first, second, and fourth causes of action are not shown to be barred as a matter of law on the face of this Complaint....” (Opposition: 6:3-7.) As the Court has sustained the demurrer to all remaining claims, the demurrer is likewise sustained, as to this derivative claim. While Plaintiff has not specified how he will amend to state a claim and, in particular, has not identified a legal basis for avoiding the statute of limitations, leave to amend is GRANTED, as this is his first attempt at pleading. (See Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688; See also Amy’s Kitchen, Inc. v. Fireman’s Fund Ins. Co. (2022) 83 Cal.App.5th 1062, 1073.)
104	Craig v. SageKitchen, LLC, 2025-01526209	MOTION TO COMPEL ARBITRATION TENTATIVE FORTHCOMING
105	Elias v. Jensen, 2020-01139897	MOTION FOR RECONSIDERATION – CONTINUED On July 28, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security Pursuant to Vexatious Litigant Statute. Pursuant to CCP §391.6, the filing of this motion automatically stays the entirety of the action until a specified time after the motion is heard.

		Accordingly, Plaintiff David Elias’s Motion for Reconsideration is CONTINUED to November 2, 2026 at 9:00 a.m. in Department N14. NO FURTHER BRIEFING ON THIS MOTION WILL BE PERMITTED. For the same reason, the Court also continues the hearing on Plaintiff’s Motion for Statement of Decision (ROA 1147) from September 28, 2026 to November 2, 2026 at 9:00 a.m. in Department N14. Clerk to give notice.
106	Flanagan v. Mercedes-Benz USA, LLC, 2026-01551285	MOTION TO COMPEL ARBITRATION – GRANTED The Motion to Compel Arbitration brought by Defendant Mercedes-Benz USA, LLC, against Plaintiff Nicholas Flanagan, is GRANTED. The Federal Arbitration Act governs here as the arbitration agreement expressly provides that it “shall be governed by the Federal Arbitration Act (9 USC 1, et seq.).” (Sandhu Decl., Ex. B at p. 4.) Accordingly, the FAA applies. The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The United States Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (Concepcion, supra, 563 U.S. at p. 339.) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (First Options of Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 944.) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.”